

of extraordinary skill, in particular, appears susceptible to improper double counting; for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a more skillful and experienced attorney will command a higher hourly rate. (See *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004, 185 Cal.Rptr. 145.) Indeed, the “ ‘reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case.’ ” (*Ibid.*) Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139 [emphasis original].)

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Id.* at p. 1132, citing *Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 49.)

Here, plaintiffs submit that counsel took the matter on contingency, and obtained an excellent result. The court acknowledges the contingent risk taken by counsel; however, the settlement amounting to the repurchase of the vehicle appears to be an average result. Counsel does not suggest that time dedicated to this case precluded other employment. Moreover, defendant contends that plaintiffs have unduly delayed in filing a motion for fees. The court applies a multiplier of 1.1 reflecting the contingent nature of the fee award.

Therefore, the motion for an award of attorney fees is granted in the amount of \$16,615.50.¹ In the event a hearing is required, further fees may be awarded.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 17, 2026.
(Judge's initials) (Date)

¹ Costs are not at issue in this motion.

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Tentative Ruling

Re: ***LS Power Grid California LLC v. Olivia Chaney, Surviving Trustee of the Chaney Family Trust, Established March 9, 1996 et al.***

Superior Court Case No. 26CECG01248

Hearing Date: August 18, 2026 (Dept. 403)

Motion: By plaintiff LS Power Grid California, LLC for Order of Prejudgment Possession

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 1255.410, subd. (a).)

Explanation:

Plaintiff LS Power Grid California, LLC ("Plaintiff") moves for an order of prejudgment possession for an easement under Code of Civil Procedure section 1255.410.

Code of Civil Procedure section 1255.410, subdivision (a), requires that a motion under the statute "shall describe the property of which the plaintiff is seeking to take possession, which description may be by reference to the complaint, and shall state the date after which the plaintiff is seeking to take possession of the property."

Plaintiff has described the property Plaintiff is seeking an easement on. (Bratcher Decl., Exh. 1.) However, Plaintiff's motion does not state the date after which Plaintiff is seeking to take possession of the property as required by Code of Civil Procedure section 1255.410, subdivision (a). Accordingly, the motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 17, 2026.
(Judge's initials) (Date)